that an effect be from God, the cause of which is evil, such as a child born of adultery; for it is not from that cause as evil, but as having some good in so far as it is from God, although it is not from God simply.

Reply to Objection 3: The intention of the Church whereby she intends to confer a sacrament is essential to each sacrament, so that if it be not observed, all sacraments are null. But the intention of the Church whereby she intends an advantage resulting from the sacrament belongs to the well-being and not to the essence of a sacrament; wherefore, if it be not observed, the sacrament is none the less valid. Yet he who omits this intention sins; for instance if in baptism one intend not the healing of the mind which the Church intends. In like manner he who intends to marry, although he fail to direct it to the end which the Church intends, nevertheless contracts a valid marriage.

Reply to Objection 4: This evil which is intended is the end not of marriage, but of the contracting parties.

Reply to Objection 5: The union itself, and not the action of those who are united, is the sign of the union of Christ with the Church: wherefore the conclusion does not follow.

OF THE MARRIAGE GOODS* (SIX ARTICLES) [*"Bona matrimonii," variously rendered marriage goods, marriage blessings, and advantages of marriage.]

In the next place we must consider the marriage goods. Under this head there are six points of inquiry:

(1) Whether certain goods are necessary in order to excuse marriage?

(2) Whether those assigned are sufficient?

(3) Whether the sacrament is the principal among the goods?

(4) Whether the marriage act is excused from sin by the aforesaid goods?

(5) Whether it can ever be excused from sin without them?

(6) Whether in their absence it is always a mortal sin?

Whether certain blessings are necessary in order to excuse marriage?

Objection 1: It would seem that certain blessings are not necessary in order to excuse marriage. For just as the preservation of the individual which is effected by the nutritive power is intended by nature, so too is the preservation of the species which is effected by marriage; and indeed so much the more as the good of the species is better and more exalted than the good of the individual. But no goods are necessary to excuse the act of the nutritive power. Neither therefore are they necessary to excuse marriage.

Objection 2: Further, according to the Philosopher (Ethic. viii, 12) the friendship between husband and wife is natural, and includes the virtuous, the useful, and the pleasant. But that which is virtuous in itself needs no excuse. Therefore neither should any goods be assigned for the excuse of matrimony.

Objection 3: Further, matrimony was instituted as a remedy and as an office, as stated above (Q[42], A[2]). Now it needs no excuse in so far as it is instituted as an office, since then it would also have needed an excuse in paradise, which is false, for there, as Augustine says, "marriage

would have been without reproach and the marriage-bed without stain" (Gen. ad lit. ix). In like manner neither does it need an excuse in so far as it is intended as a remedy, any more than the other sacraments which were instituted as remedies for sin. Therefore matrimony does not need these excuses.

Objection 4: Further, the virtues are directed to whatever can be done aright. If then marriage can be righted by certain goods, it needs nothing else to right it besides the virtues of the soul; and consequently there is no need to assign to matrimony any goods whereby it is righted, any more than to other things in which the virtues direct us.

On the contrary, Wherever there is indulgence, there must needs be some reason for excuse. Now marriage is allowed in the state of infirmity "by indulgence" (1 Cor. 7:6). Therefore it needs to be excused by certain goods.

Further, the intercourse of fornication and that of marriage are of the same species as regards the species of nature. But the intercourse of fornication is wrong in itself. Therefore, in order that the marriage intercourse be not wrong, something must be added to it to make it right, and draw it to another moral species.

I answer that, No wise man should allow himself to lose a thing except for some compensation in the shape of an equal or better good. Wherefore for a thing that has a loss attached to it to be eligible, it needs to have some good connected with it, which by compensating for that loss makes that thing ordinate and right. Now there is a loss of reason incidental to the union of man and woman, both because the reason is carried away entirely on account of the vehemence of the pleasure, so that it is unable to understand anything at the same time, as the Philosopher says (Ethic. vii, 11); and again because of the tribulation of the flesh which such persons have to suffer from solicitude for temporal things (1 Cor. 7:28). Consequently the choice of this union cannot be made ordinate except by certain compensations whereby that same union is righted. and these are the goods which excuse marriage and make it right.

Reply to Objection 1: In the act of eating there is not such an intense pleasure overpowering the reason as in the aforesaid action, both because the generative power, whereby original sin is transmitted, is infected and corrupt, whereas the nutritive power, by which original sin is not transmitted, is neither corrupt nor infected; and again because each one feels in himself a defect of the individual more than a defect of the species. Hence, in order to entice a man to take food which supplies a defect of the individual, it is enough that he feel this defect; but in order to entice him to the act whereby a defect of the species is remedied, Divine providence attached pleasure to that act, which moves even irrational animals in which there is not the stain of original sin. Hence the comparison fails.

Reply to Objection 2: These goods which justify marriage belong to the nature of marriage, which consequently needs them, not as extrinsic causes of its rectitude, but as causing in it that rectitude which belongs to it by nature.

Reply to Objection 3: From the very fact that marriage is intended as an office or as a remedy it has the aspect of something useful and right; nevertheless both aspects belong to it from the fact that it has these goods by which it fulfills the office and affords a remedy to concupiscence.

Reply to Objection 4: An act of virtue may derive its rectitude both from the virtue as its elicitive principle, and from its circumstances as its formal principles; and the goods of marriage are related to marriage as circumstances to an act of virtue which owes it to those circumstances that it can be an act of virtue.

Whether the goods of marriage are sufficiently enumerated?

Objection 1: It would seem that the goods of marriage are insufficiently enumerated by the Master (Sent. iv, D, 31), namely "faith, offspring, and sacrament." For the object of marriage among men is not only the begetting and feeding of children, but also the partnership of a common life, whereby each one contributes his share of work to the common stock, as stated in Ethic. viii, 12. Therefore as the offspring is reckoned a good of matrimony, so also should the communication of works.

Objection 2: Further, the union of Christ with the Church, signified by matrimony, is the effect of charity. Therefore charity rather than faith should be reckoned among the goods of matrimony.

Objection 3: Further, in matrimony, just as it is required that neither party have intercourse with another, so is it required that the one pay the marriage debt to the other. Now the former pertains to faith according to the Master (Sent. iv, D, 31). Therefore justice should also be reckoned among the goods of marriage on account of the payment of the debt.

Objection 4: Further, in matrimony as signifying the union of Christ with the Church, just as indivisibility is required, so also is unity, whereby one man has one wife. But the sacrament which is reckoned among the three marriage goods pertains to indivisibility. Therefore there should be something else pertaining to unity.

Objection 5: On the other hand, it would seem that they are too many. For one virtue suffices to make one act right. Now faith is one virtue. Therefore it was not necessary to add two other goods to make marriage right.

Objection 6: Further, the same cause does not make a thing both useful and virtuous, since the useful and the virtuous are opposite divisions of the good. Now marriage derives its character of useful from the offspring. Therefore the offspring should not be reckoned among the goods that make marriage virtuous.

Objection 7: Further, nothing should be reckoned as a property or condition of itself. Now these goods are reckoned to be conditions of marriage. Therefore since matrimony is a sacrament, the sacrament should not be reckoned a condition of matrimony.

I answer that, Matrimony is instituted both as an office of nature and as a sacrament of the Church. As an office of nature it is directed by two things, like every other virtuous act. one of these is required on the part of the agent and is the intention of the due end, and thus the "offspring" is accounted a good of matrimony; the other is required on the part of the act, which is good generically through being about a due matter; and thus we have "faith," whereby a man has intercourse with his wife and with no other woman. Besides this it has a certain goodness as a sacrament, and this is signified by the very word "sacrament."

Reply to Objection 1: Offspring signifies not only the begetting of children, but also their education, to which as its end is directed the entire communion of works that exists between man and wife as united in marriage, since parents naturally "lay up" for their "children" (2 Cor. 12:14); so that the offspring like a principal end includes another, as it were, secondary end.

Reply to Objection 2: Faith is not taken here as a theological virtue, but as part of justice, in so far as faith [fides] signifies the suiting of deed to word [fiant dicta] by keeping one's promises; for since marriage is a contract it contains a promise whereby this man is assigned to this woman.

Reply to Objection 3: Just as the marriage promise means that neither party is to have intercourse with a third party, so does it require that they should mutually pay the marriage debt.

The latter is indeed the chief of the two, since it follows from the power which each receives over the other. Consequently both these things pertain to faith, although the Book of Sentences mentions that which is the less manifest.

Reply to Objection 4: By sacrament we are to understand not only indivisibility, but all those things that result from marriage being a sign of Christ's union with the Church. We may also reply that the unity to which the objection refers pertains to faith, just as indivisibility belongs to the sacrament.

Reply to Objection 5: Faith here does not denote a virtue, but that condition of virtue which is a part of justice and is called by the name of faith.

Reply to Objection 6: Just as the right use of a useful good derives its rectitude not from the useful but from the reason which causes the right use, so too direction to a useful good may cause the goodness of rectitude by virtue of the reason causing the right direction; and in this way marriage, through being directed to the offspring, is useful, and nevertheless righteous, inasmuch as it is directed aright.

Reply to Objection 7: As the Master says (Sent. iv, D, 31), sacrament here does not mean matrimony itself, but its indissolubility, which is a sign of the same thing as matrimony is.

We may also reply that although marriage is a sacrament, marriage as marriage is not the same as marriage as a sacrament, since it was instituted not only as a sign of a sacred thing, but also as an office of nature. Hence the sacramental aspect is a condition added to marriage considered in itself, whence also it derives its rectitude. Hence its sacramentality, if I may use the term, is reckoned among the goods which justify marriage; and accordingly this third good of marriage, the sacrament to wit, denotes not only its indissolubility, but also whatever pertains to its signification.

Whether the sacrament is the chief of the marriage goods?

Objection 1: It would seem that the "sacrament" is not the chief of the marriage goods. For the end is principal in everything. Now the end of marriage is the offspring. Therefore the offspring is the chief marriage good.

Objection 2: Further, in the specific nature the difference is more important than the genus, even as the form is more important than matter in the composition of a natural thing. Now "sacrament" refers to marriage on the part of its genus, while "offspring" and "faith" refer thereto on the part of the difference whereby it is a special kind of sacrament. Therefore these other two are more important than sacrament in reference to marriage.

Objection 3: Further, just as we find marriage without "offspring" and without "faith," so do we find it without indissolubility, as in the case where one of the parties enters religion before the marriage is consummated. Therefore neither from this point of view is "sacrament" the most important marriage good.

Objection 4: Further, an effect cannot be more important than its cause. Now consent, which is the cause of matrimony, is often changed. Therefore the marriage also can be dissolved and consequently inseparability is not always a condition of marriage.

Objection 5: Further, the sacraments which produce an everlasting effect imprint a character. But no character is imprinted in matrimony. Therefore it is not conditioned by a lasting inseparability.

Consequently just as there is marriage without "offspring" so is there marriage without "sacrament," and thus the same conclusion follows as above.

On the contrary, That which has a place in the definition of a thing is most essential thereto. Now inseparability, which pertains to sacrament, is placed in the definition of marriage (Q[44], A[3]), while offspring and faith are not. Therefore among the other goods sacrament is the most essential to matrimony.

Further, the Divine power which works in the sacraments is more efficacious than human power. But "offspring" and "faith" pertain to matrimony as directed to an office of human nature, whereas "sacrament" pertains to it as instituted by God. Therefore sacrament takes a more important part in marriage than the other two.

I answer that, This or that may be more important to a thing in two ways, either because it is more essential or because it is more excellent. If the reason is because it is more excellent, then "sacrament" is in every way the most important of the three marriage goods, since it belongs to marriage considered as a sacrament of grace; while the other two belong to it as an office of nature; and a perfection of grace is more excellent than a perfection of nature. If, however, it is said to be more important because it is more essential, we must draw a distinction; for "faith" and "offspring" can be considered in two ways. First, in themselves, and thus they regard the use of matrimony in begetting children and observing the marriage compact; while inseparability, which is denoted by "sacrament," regards the very sacrament considered in itself, since from the very fact that by the marriage compact man and wife give to one another power the one over the other in perpetuity, it follows that they cannot be put asunder. Hence there is no matrimony without inseparability, whereas there is matrimony without "faith" and "offspring," because the existence of a thing does not depend on its use; and in this sense "sacrament" is more essential to matrimony than "faith" and "offspring." Secondly, "faith" and "offspring" may be considered as in their principles, so that "offspring" denote the intention of having children, and "faith" the duty of remaining faithful, and there can be no matrimony without these also, since they are caused in matrimony by the marriage compact itself, so that if anything contrary to these were expressed in the consent which makes a marriage, the marriage would be invalid. Taking "faith" and "offspring" in this sense, it is clear that "offspring" is the most essential thing in marriage, secondly "faith," and thirdly "sacrament"; even as to man it is more essential to be in nature than to be in grace, although it is more excellent to be in grace.

Reply to Objection 1: The end as regards the intention stands first in a thing, but as regards the attainment it stands last. It is the same with "offspring" among the marriage goods; wherefore in a way it is the most important and in another way it is not.

Reply to Objection 2: Sacrament, even as holding the third place among the marriage goods, belongs to matrimony by reason of its difference; for it is called "sacrament" from its signification of that particular sacred thing which matrimony signifies.

Reply to Objection 3: According to Augustine (De Bono Conjug. ix), marriage is a good of mortals, wherefore in the resurrection "they shall neither marry nor be married" (Mat. 22:30). Hence the marriage bond does not last after the life wherein it is contracted, and consequently it is said to be inseparable, because it cannot be sundered in this life, but either by bodily death after carnal union, or by spiritual death after a merely spiritual union.

Reply to Objection 4: Although the consent which makes a marriage is not everlasting materially, i.e. in regard to the substance of the act, since that act ceases and a contrary act may succeed it, nevertheless formally speaking it is everlasting, because it is a consent to an ever lasting

bond, else it would not make a marriage, for a consent to take a woman for a time makes no marriage. Hence it is everlasting formally, inasmuch as an act takes its species from its object; and thus it is that matrimony derives its inseparability from the consent.

Reply to Objection 5: In those sacraments wherein a character is imprinted, power is given to perform spiritual actions; but in matrimony, to perform bodily actions. Wherefore matrimony by reason of the power which man and wife receive over one another agrees with the sacraments in which a character is imprinted, and from this it derives its inseparability, as the Master says (Sent. iv, D, 31); yet it differs from them in so far as that power regards bodily acts; hence it does not confer a spiritual character.

Whether the marriage act is excused by the aforesaid goods?

Objection 1: It would seem that the marriage act cannot be altogether excused from sin by the aforesaid goods. For whoever allows himself to lose a greater good for the sake of a lesser good sins because he allows it inordinately. Now the good of reason which is prejudiced in the marriage act is greater than these three marriage goods. Therefore the aforesaid goods do not suffice to excuse marriage intercourse.

Objection 2: Further, if a moral good be added to a moral evil the sum total is evil and not good, since one evil circumstance makes an action evil, whereas one good circumstance does not make it good. Now the marriage act is evil in itself, else it would need no excuse. Therefore the addition of the marriage goods cannot make the act good.

Objection 3: Further, wherever there is immoderate passion there is moral vice. Now the marriage goods cannot prevent the pleasure in that act from being immoderate. Therefore they cannot excuse it from being a sin.

Objection 4: Further, according to Damascene (De Fide Orth. ii, 15), shame is only caused by a disgraceful deed. Now the marriage goods do not deprive that deed of its shame. Therefore they cannot excuse it from sin.

On the contrary, The marriage act differs not from fornication except by the marriage goods. If therefore these were not sufficient to excuse it marriage would be always unlawful; and this is contrary to what was stated above (Q[41], A[3]).

Further, the marriage goods are related to its act as its due circumstances, as stated above (A[1], ad 4). Now the like circumstances are sufficient to prevent an action from being evil. Therefore these goods can excuse marriage so that it is nowise a sin.

I answer that, An act is said to be excused in two ways. First, on the part of the agent, so that although it be evil it is not imputed as sin to the agent, or at least not as so grave a sin. thus ignorance is said to excuse a sin wholly or partly. Secondly, an act is said to be excused on its part, so that, namely, it is not evil; and it is thus that the aforesaid goods are said to excuse the marriage act. Now it is from the same cause that an act is not morally evil, and that it is good, since there is no such thing as an indifferent act, as was stated in the Second Book (Sent. ii, D, 40; FS, Q[18], A[9]). Now a human act is said to be good in two ways. In one way by goodness of virtue, and thus an act derives its goodness from those things which place it in the mean. This is what "faith" and "offspring" do in the marriage act, as stated above (A[2]). In another way, by goodness of the "sacrament," in which way an act is said to be not only good, but also holy, and the marriage act

derives this goodness from the indissolubility of the union, in respect of which it signifies the union of Christ with the Church. Thus it is clear that the aforesaid goods sufficiently excuse the marriage act.

Reply to Objection 1: By the marriage act man does not incur harm to his reason as to habit, but only as to act. Nor is it unfitting that a certain act which is generically better be sometimes interrupted for some less good act; for it is possible to do this without sin, as in the case of one who ceases from the act of contemplation in order meanwhile to devote himself to action.

Reply to Objection 2: This argument would avail if the evil that is inseparable from carnal intercourse were an evil of sin. But in this case it is an evil not of sin but of punishment alone, consisting in the rebellion of concupiscence against reason; and consequently the conclusion does not follow.

Reply to Objection 3: The excess of passion that amounts to a sin does not refer to the passion's quantitative intensity, but to its proportion to reason; wherefore it is only when a passion goes beyond the bounds of reason that it is reckoned to be immoderate. Now the pleasure attaching to the marriage act, while it is most intense in point of quantity, does not go beyond the bounds previously appointed by reason before the commencement of the act, although reason is unable to regulate them during the pleasure itself.

Reply to Objection 4: The turpitude that always accompanies the marriage act and always causes shame is the turpitude of punishment, not of sin, for man is naturally ashamed of any defect.

Whether the marriage act can be excused without the marriage goods?

Objection 1: It would seem that the marriage act can be excused even without the marriage goods. For he who is moved by nature alone to the marriage act, apparently does not intend any of the marriage goods, since the marriage goods pertain to grace or virtue. Yet when a person is moved to the aforesaid act by the natural appetite alone, seemingly he commits no sin, for nothing natural is an evil, since "evil is contrary to nature and order," as Dionysius says (Div. Nom. iv). Therefore the marriage act can be excused even without the marriage goods.

Objection 2: Further, he who has intercourse with his wife in order to avoid fornication, does not seemingly intend any of the marriage goods. Yet he does not sin apparently, because marriage was granted to human weakness for the very purpose of avoiding fornication (1 Cor. 7:2,6). Therefore the marriage act can be excused even without the marriage goods.

Objection 3: Further, he who uses as he will that which is his own does not act against justice, and thus seemingly does not sin. Now marriage makes the wife the husband's own, and "vice versa." Therefore, if they use one another at will through the instigation of lust, it would seem that it is no sin; and thus the same conclusion follows.

Objection 4: Further, that which is good generically does not become evil unless it be done with an evil intention. Now the marriage act whereby a husband knows his wife is generically good. Therefore it cannot be evil unless it be done with an evil intention. Now it can be done with a good intention, even without intending any marriage good, for instance by intending to keep or acquire bodily health. Therefore it seems that this act can be excused even without the marriage goods.

On the contrary, If the cause be removed the effect is removed. Now the marriage goods are the cause of rectitude in the marriage act. Therefore the marriage act cannot be excused without them.

Further, the aforesaid act does not differ from the act of fornication except in the aforesaid goods. But the act of fornication is always evil. Therefore the marriage act also will always be evil unless it be excused by the aforesaid goods.

I answer that, Just as the marriage goods, in so far as they consist in a habit, make a marriage honest and holy, so too, in so far as they are in the actual intention, they make the marriage act honest, as regards those two marriage goods which relate to the marriage act. Hence when married persons come together for the purpose of begetting children, or of paying the debt to one another (which pertains to "faith") they are wholly excused from sin. But the third good does not relate to the use of marriage, but to its excuse, as stated above (A[3]); wherefore it makes marriage itself honest, but not its act, as though its act were wholly excused from sin, through being done on account of some signification. Consequently there are only two ways in which married persons can come together without any sin at all, namely in order to have offspring, and in order to pay the debt. otherwise it is always at least a venial sin.

Reply to Objection 1: The offspring considered as a marriage good includes something besides the offspring as a good intended by nature. For nature intends offspring as safeguarding the good of the species, whereas the offspring as a good of the sacrament of marriage includes besides this the directing of the child to God. Wherefore the intention of nature which intends the offspring must needs be referred either actually or habitually to the intention of having an offspring, as a good of the sacrament: otherwise the intention would go no further than a creature; and this is always a sin. Consequently whenever nature alone moves a person to the marriage act, he is not wholly excused from sin, except in so far as the movement of nature is further directed actually or habitually to the offspring as a good of the sacrament. Nor does it follow that the instigation of nature is evil, but that it is imperfect unless it be further directed to some marriage good.

Reply to Objection 2: If a man intends by the marriage act to prevent fornication in his wife, it is no sin, because this is a kind of payment of the debt that comes under the good of "faith." But if he intends to avoid fornication in himself, then there is a certain superfluity, and accordingly there is a venial sin, nor was the sacrament instituted for that purpose, except by indulgence, which regards venial sins.

Reply to Objection 3: One due circumstance does not suffice to make a good act, and consequently it does not follow that, no matter how one use one's own property, the use is good, but when one uses it as one ought according to all the circumstances.

Reply to Objection 4: Although it is not evil in itself to intend to keep oneself in good health, this intention becomes evil, if one intend health by means of something that is not naturally ordained for that purpose; for instance if one sought only bodily health by the sacrament of baptism, and the same applies to the marriage act in the question at issue.

Whether it is a mortal sin for a man to have knowledge of his wife, with the intention not of a marriage good but merely of pleasure?

Objection 1: It would seem that whenever a man has knowledge of his wife, with the intention not of a marriage good but merely of pleasure, he commits a mortal sin. For according to Jerome (Comment. in Eph. 5:25), as quoted in the text (Sent. iv, D, 31), "the pleasure taken in the embraces of a wanton is damnable in a husband." Now nothing but mortal sin is said to be damnable. Therefore it is always a mortal sin to have knowledge of one's wife for mere pleasure.

Objection 2: Further, consent to pleasure is a mortal sin, as stated in the Second Book (Sent. ii, D, 24). Now whoever knows his wife for the sake of pleasure consents to the pleasure. Therefore he sins mortally.

Objection 3: Further, whoever fails to refer the use of a creature to God enjoys a creature, and this is a mortal sin. But whoever uses his wife for mere pleasure does not refer that use to God. Therefore he sins mortally.

Objection 4: Further, no one should be excommunicated except for a mortal sin. Now according to the text (Sent. ii, D, 24) a man who knows his wife for mere pleasure is debarred from entering the Church, as though he were excommunicate. Therefore every such man sins mortally.

On the contrary, As stated in the text (Sent. ii, D, 24), according to Augustine (Contra Jul. ii, 10; De Decem Chord. xi; Serm. xli, de Sanct.), carnal intercourse of this kind is one of the daily sins, for which we say the "Our Father." Now these are not mortal sins. Therefore, etc.

Further, it is no mortal sin to take food for mere pleasure. Therefore in like manner it is not a mortal sin for a man to use his wife merely to satisfy his desire.

I answer that, Some say that whenever pleasure is the chief motive for the marriage act it is a mortal sin; that when it is an indirect motive it is a venial sin; and that when it spurns the pleasure altogether and is displeasing, it is wholly void of venial sin; so that it would be a mortal sin to seek pleasure in this act, a venial sin to take the pleasure when offered, but that perfection requires one to detest it. But this is impossible, since according to the Philosopher (Ethic. x, 3,4) the same judgment applies to pleasure as to action, because pleasure in a good action is good, and in an evil action, evil; wherefore, as the marriage act is not evil in itself, neither will it be always a mortal sin to seek pleasure therein. Consequently the right answer to this question is that if pleasure be sought in such a way as to exclude the honesty of marriage, so that, to wit, it is not as a wife but as a woman that a man treats his wife, and that he is ready to use her in the same way if she were not his wife, it is a mortal sin; wherefore such a man is said to be too ardent a lover of his wife, because his ardor carries him away from the goods of marriage. If, however, he seek pleasure within the bounds of marriage, so that it would not be sought in another than his wife, it is a venial sin.

Reply to Objection 1: A man seeks wanton pleasure in his wife when he sees no more in her that he would in a wanton.

Reply to Objection 2: Consent to the pleasure of the intercourse that is a mortal sin is itself a mortal sin; but such is not the consent to the marriage act.

Reply to Objection 3: Although he does not actually refer the pleasure to God, he does not place his will's last end therein; otherwise he would seek it anywhere indifferently. Hence it does not follow that he enjoys a creature; but he uses a creature actually for his own sake, and himself habitually, though not actually, for God's sake.

Reply to Objection 4: The reason for this statement is not that man deserves to be excommunicated for this sin, but because he renders himself unfit for spiritual things, since in that act, he becomes flesh and nothing more.

OF THE IMPEDIMENTS OF MARRIAGE, IN GENERAL (ONE ARTICLE)

In the next place we must consider the impediments of marriage: (1) In general; (2) In particular.

Whether it is fitting that impediments should be assigned to marriage?

Objection 1: It would seem unfitting for impediments to be assigned to marriage. For marriage is a sacrament condivided with the others. But no impediments are assigned to the others. Neither therefore should they be assigned to marriage.

Objection 2: Further, the less perfect a thing is the fewer its obstacles. Now matrimony is the least perfect of the sacraments. Therefore it should have either no impediments or very few.

Objection 3: Further, wherever there is disease, it is necessary to have a remedy for the disease. Now concupiscence, a remedy for which is permitted in matrimony (1 Cor. 7:6), is in all. Therefore there should not be any impediment making it altogether unlawful for a particular person to marry.

Objection 4: Further, unlawful means against the law. Now these impediments that are assigned to matrimony are not against the natural law, because they are not found to be the same in each state of the human race, since more degrees of kindred come under prohibition at one time than at another. Nor, seemingly, can human law set impediments against marriage, since marriage, like the other sacraments, is not of human but of Divine institution. Therefore impediments should not be assigned to marriage, making it unlawful for a person to marry.

Objection 5: Further, lawful and unlawful differ as that which is against the law from that which is not, and between these there is no middle term, since they are opposed according to affirmation and negation. Therefore there cannot be impediments to marriage, placing a person in a middle position between those who are lawful and those who are unlawful subjects of marriage.

Objection 6: Further, union of man and woman is unlawful save in marriage. Now every unlawful union should be dissolved. Therefore if anything prevent a marriage being contracted, it will "de facto" dissolve it after it has been contracted; and thus impediments should not be assigned to marriage, which hinder it from being contracted, and dissolve it after it has been contracted.

Objection 7: Further, no impediment can remove from a thing that which is part of its definition. Now indissolubility is part of the definition of marriage. Therefore there cannot be any impediments which annul a marriage already contracted.

Objection 8: On the other hand, it would seem that there should be an infinite number of impediments to marriage. For marriage is a good. Now good may be lacking in an infinite number of ways, as Dionysius says (Div. Nom. iii). Therefore there is an infinite number of impediments to marriage.

Objection 9: Further, the impediments to marriage arise from the conditions of individuals. But such like conditions are infinite in number. Therefore the impediments to marriage are also infinite.

I answer that, In marriage, as in other sacraments, there are certain things essential to marriage, and others that belong to its solemnization. And since even without the things that pertain to its solemnization it is still a true sacrament, as also in the case of the other sacraments, it follows that the impediments to those things that pertain to the solemnization of this sacrament do not derogate from the validity of the marriage. These impediments are said to hinder the contracting of marriage, but they do not dissolve the marriage once contracted; such are the veto of the Church, or the holy seasons. Hence the verse:

"The veto of the Church and holy tide
Forbid the knot, but loose it not if tied."

On the other hand, those impediments which regard the essentials of marriage make a marriage invalid, wherefore they are said not only to hinder the contracting of marriage, but to dissolve it if contracted; and they are contained in the following verse:

"Error, station, vow, kinship, crime,
Difference of worship, force, holy orders,
Marriage bond, honesty, affinity, impotence,
All these forbid marriage, and annul it though
contracted."

The reason for this number may be explained as follows: Marriage may be hindered either on the part of the contract or in regard to the contracting parties. If in the first way, since the marriage contract is made by voluntary consent, and this is incompatible with either ignorance or violence, there will be two impediments to marriage, namely "force," i.e. compulsion, and "error" in reference to ignorance. Wherefore the Master pronounced on these two impediments when treating of the cause of matrimony (Sent. iv, DD 29,30). Here, however, he is treating of the impediments as arising from the contracting parties, and these may be differentiated as follows. A person may be hindered from contracting marriage either simply, or with some particular person. If simply, so that he be unable to contract marriage with any woman, this can only be because he is hindered from performing the marriage act. This happens in two ways. First, because he cannot "de facto," either through being altogether unable---and thus we have the impediment of "impotence"---or through being unable to do so freely, and thus we have the impediment of the "condition of slavery." Secondly, because he cannot do it lawfully, and this because he is bound to continence, which happens in two ways, either through his being bound on account of the office he has undertaken to fulfill---and thus we have the impediment of "Order"---or on account of his having taken a vow---and thus "Vow" is an impediment.

If, however, a person is hindered from marrying, not simply but in reference to a particular person, this is either because he is bound to another person, and thus he who is married to one cannot marry another, which constitutes the impediment of the "bond of marriage"---or through lack of proportion to the other party, and this for three reasons. First, on account of too great a distance separating them, and thus we have "difference of worship"; secondly, on account of their being too closely related, and thus we have three impediments, namely "kinship," then "affinity," which denotes the close relationship between two persons, in reference to a third united to one of them by marriage, and the "justice of public honesty," where we have a close relationship between two persons arising out of the betrothal of one of them to a third person; thirdly, on account of a previous undue union between him and the woman, and thus the "crime of adultery" previously committed with her is an impediment.

Reply to Objection 1: There may be impediments to the other sacraments also in the omission either of that which is essential, or of that which pertains to the solemnization of the sacrament, as stated above. However, impediments are assigned to matrimony rather than to the other sacraments for three reasons. First, because matrimony consists of two persons, and consequently can be impeded in more ways than the other sacraments which refer to one person taken individually; secondly, because matrimony has its cause in us and in God, while some of the other sacraments have their cause in God alone. Wherefore penance which in a manner has a cause in us, is assigned

certain impediments by the Master (Sent. iv, D, 16), such as hypocrisy, the public games, and so forth; thirdly, because other sacraments are objects of command or counsel, as being more perfect goods, whereas marriage is a matter of indulgence, as being a less perfect good (1 Cor. 7:6). Wherefore, in order to afford an opportunity of proficiency towards a greater good, more impediments are assigned to matrimony than to the other sacraments.

Reply to Objection 2: The more perfect things can be hindered in more ways, in so far as more conditions are required for them. And if an imperfect thing requires more conditions, there will be more impediments to it; and thus it is in matrimony.

Reply to Objection 3: This argument would hold, were there no other and more efficacious remedies for the disease of concupiscence; which is false.

Reply to Objection 4: Persons are said to be unlawful subjects for marriage through being contrary to the law whereby marriage is established. Now marriage as fulfilling an office of nature is established by the natural law; as a sacrament, by the Divine law; as fulfilling an office of society, by the civil law. Consequently a person may be rendered an unlawful subject of marriage by any of the aforesaid laws. Nor does the comparison with the other sacraments hold, for they are sacraments only. And since the natural law is particularized in various ways according to the various states of mankind, and since positive law, too, varies according to the various conditions of men, the Master (Sent. iv, D, 34) asserts that at various times various persons have been unlawful subjects of marriage.

Reply to Objection 5: The law may forbid a thing either altogether, or in part and in certain cases. Hence between that which is altogether according to the law and that which is altogether against the law (which are opposed by contrariety and not according to affirmation and negation), that which is somewhat according to the law and somewhat against the law is a middle term. For this reason certain persons hold a middle place between those who are simply lawful subjects and those who are simply unlawful.

Reply to Objection 6: Those impediments which do not annul a marriage already contracted sometimes hinder a marriage from being contracted, by rendering it not invalid but unlawful. And if it be contracted it is a true marriage although the contracting parties sin; just as by consecrating after breaking one's fast one would sin by disobeying the Church's ordinance, and yet it would be a valid sacrament because it is not essential to the sacrament that the consecrator be fasting.

Reply to Objection 7: When we say that the aforesaid impediments annul marriage already contracted, we do not mean that they dissolve a marriage contracted in due form, but that they dissolve a marriage contracted "de facto" and not "de jure." Wherefore if an impediment supervene after a marriage has been contracted in due form, it cannot dissolve the marriage.

Reply to Objection 8: The impediments that hinder a good accidentally are infinite in number, like all accidental causes. But the causes which of their own nature corrupt a certain good are directed to that effect, and determinate, even as are the causes which produce that good; for the causes by which a thing is destroyed and those by which it is made are either contrary to one another, or the same but taken in a contrary way.

Reply to Objection 9: The conditions of particular persons taken individually are infinite in number, but taken in general, they may be reduced to a certain number; as instanced in medicine and all operative arts, which consider the conditions of particular persons in whom acts are.